IN THE NATIONAL COMPANY LAW TRIBUNAL: CHANDIGARH
(through Hybrid Mode)
COURT-I

Item No. 1

CP(CAA) No. 33/Chd/Hry/2025
(2nd Motion)

IN THE MATTER OF AMALGAMATION OF:

RECIQ Enterprises Pvt. Ltd.
Through its Authorized Representative
Registered Address at:
House No.32, Sector 9,
Faridabad, Ballabgarh,
Haryana-121006
Email: Sahsoni@gmail.com

… **Applicant Company/ Transferor Company**

And

SI Interpack Pvt. Ltd.
Through its Authorized Representative
Registered Address at:
B-5/13, Azad Apartments,
Aurobindo Marg, New Delhi-110016,
Email: sahilsoni@siinterpack.com

….**Transferee Company**

Under Section: 230-232, CA 2013

Order delivered on 08.08.2025

CORAM:

SH. SHISHIR AGARWAL
HON'BLE MEMBER (T)

SH. K. BISWAL
HON'BLE MEMBER (J)

PRESENT:

For the Petitioner : Ms. Karuna Sharma, Advocate

Second Motion Notice

1. Proceedings under Sections 230-232 of the Companies Act, 2013 have been instituted.

2. Heard the Ld. Counsel/Authorized Representative of the Petitioner. The First Motion Petition order was passed on 07.05.2025 in CA(CAA) No.5/Chd/Hry/2025. In terms thereof, for the transferor company:-

(i) The meeting of the three equity shareholders was dispensed with, keeping in view the shareholding pattern, financial structure of the company and the fact that the consents of all shareholders (100% in value) have been submitted by way of affidavits and the meeting of 5 unsecured creditors of applicant company is dispensed with, as the consent of 5 unsecured creditors (100% in value) have been received by way of affidavits.

(ii) There was NIL preference shareholder in applicant company, therefore, there was no requirement of any meeting of preference shareholder.

(iii) The meeting of the sole debenture holder was dispensed with, as the consent of sole debenture holder was submitted by way of affidavit.

(iv) The meeting of the sole secured creditor was dispensed with, as the consent of sole secured creditor was submitted by way of affidavit.

3. Section 230 (5) of the Companies Act, 2013 and Rule 8 of the Companies (Companies Arrangements and Amalgamation) Rules, 2016 provides for the issuance of Notice on such Petitions.

4. Section 230 (5) and the relevant part of Rule 8 read as follows:-

"230. Power of compromise or make arrangements with creditors and members

(5) A notice under sub-section (3) along with all the documents in such form as may be prescribed shall also be sent to the Central

Government, the income-tax authorities, the Reserve Bank of India, the Securities and Exchange Board, the Registrar , the respective stock exchanges, the Official Liquidator , the Competition Commission of India established under sub-section (1) of section 7 of the Competition Act, 2002, if necessary, and such other sectoral regulators or authorities which are likely to be affected by the compromise or arrangement and shall require that representations, if any, to be made by them ***shall be made within a period of thirty days from the date of receipt of such notice, failing which, it shall be presumed that they have no representations to make on the proposals.***

Rule 8

*8. Notice to statutory authorities.****— (1) For the purposes of sub section (5) of section 230 of the Act, the notice shall be in Form No. CAA.3, and shall be accompanied with a copy of the scheme of compromise or arrangement, the explanatory statement and the disclosures mentioned under rule 6, and shall be sent to.- (i) the Central Government, the Registrar of Companies, the Income tax authorities, in all cases; (ii) the Reserve Bank of India, the Securities and Exchange Board of India, the Competition Commission of India, and the stock exchanges, as may be applicable; (iii) other sectoral regulators or authorities, as required by Tribunal.***

(2) The notice to the authorities mentioned in sub-rule (1) shall be sent forthwith, after the notice is sent to the members or creditors of the company, by registered post or by speed post or by courier or by hand delivery at the office of the authority.

(3) If the authorities referred to under sub-rule (1) desire to make any representation under sub-section (5) of section 230, the same shall be sent to the Tribunal within a period of thirty days from the date of receipt of such notice and copy of such representation shall simultaneously be sent to the concerned companies and in case no representation is received within the stated period of thirty days by the Tribunal, it shall be presumed that the authorities have no representation to make on the proposed scheme of compromise or arrangement."

Rule 16

16. Date and notice of hearing.—

(1) The Tribunal shall fix a date for the hearing of the petition, and notice of the hearing shall be advertised in the same newspaper in which the notice of the meeting was advertised, or in such other newspaper as the Tribunal may direct, not less than ten days before the date fixed for the hearing.

(2) The notice of the hearing of the petition shall also be served by the Tribunal to the objectors or to their representatives under sub-section (4) of section 230 of the Act and to the Central Government and other authorities who have made representation under rule 8 and have desired to be heard in their representation"

5. In view of the above, notice to the authorities specified in Section 230(5) of Companies Act 2013 read with Rule 8 and Rule 16 of the Companies (Companies Arrangements and Amalgamation) Rules 2016 for submitting their representation, if any. Notice to be served by all modes and affidavit evidencing proof of service be filed within 7 days.

6. In addition to the service of notice as above

   a. Petitioner is directed to take steps for issuance of notice in Form CAA3 and to the Central Government through Regional Director, Northern Region, Ministry of Corporate Affairs, New Delhi to be sent through email address i.e rd.north@mca.gov.in .

   b. Notice to the Registrar of Companies, Delhi and Haryana to be sent through email address i.e roc.delhi@mca.gov.in .

   c. Notice to the concerned Official Liquidator to be sent through email address i.e ol.chandigarh@mca.gov.in; Office Address: Corporate Bhawan, 2nd Floor, Plot No. 4B, Sector 27B, Madhya Marg, Chandigarh-160019.

   d. Notice to the Income Tax Authorities having jurisdiction on the Petitioner Companies be sent through email address i.e chandigarh.pccit@incometax.gov.in, office address Pr.CCIT, NWR Address:- Aayakar Bhawan, Sector- 17E,Chandigarh.

7. Notice is also directed to be published in two prominently circulating national daily newspapers namely The Tribune (English) and Dainik Tribune (Hindi) in Haryana Edition in terms of Rule 7 of the Companies (Companies Arrangements and Amalgamation) Rules, 2016 and an affidavit evidencing proof of publication be filed.

8. All the authorities on receipt of the notice, are directed to file their representation, if any, within 30 days from the date of receipt of the notice. In case, no representation is received, it will be presumed that they have no objection to the proposal.

9. List on 26.09.2025.

Sd/-
(SHISHIR AGARWAL)
MEMBER (T)

Sd/-
(K. BISWAL)
MEMBER (J)

Japneet/Pbs